PRACTICAL GUIDE

The court in the age of AI

A short guide for judges and court clerks. Research, review submissions and carry sources into your work with CourtOS.

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Technology should help you understand the case. Responsibility for the decision stays with the court.

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Working edition 03 · Pilot
CourtOS

01 / PRACTICAL GUIDE

Start with the task

What should improve in the court's work?

A concrete question

Not every task needs AI. Start with a difficulty: where is the decisive allegation? Which exhibit supports it? What does the other party say? Which legal question remains open? A good tool reduces the work of finding material and makes these questions easier to check.

Rethink the process

Richard Susskind asks how people gain access to justice and distinguishes faster existing processes from a different organisation of work. James Allsop stresses judicial power, its human purpose and the limits of performance measures alone. [1, 2, 3]

> **Our test**
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> For CourtOS, we draw this design principle: every material assertion should lead to a source passage that can be checked. Uncertainty and disagreement must remain visible. This is our proposal, not evidence that the tool improves justice.

02 / PRACTICAL GUIDE

Judgment remains human

AI offers a draft. The court answers for its reasons.

The legal framework

Article 29 of the Swiss Federal Constitution protects fair proceedings, the right to be heard and a reasonable time. Article 29a generally guarantees access to a court. Article 30 requires a tribunal established by law, competent, independent and impartial; Article 191c binds judicial authorities solely to the law when exercising their judicial functions. [4]

Reasons, not just fluent writing

Reasons must disclose the decisive considerations and allow an effective challenge to the decision. A fluent AI response does not by itself do that. [5]

A single judge or a panel

We propose the same discipline for both: check sources, preserve objections and assign responsibility. Each member of a three- or five-judge panel needs room to form an assessment. Early discussion remains possible. The pilot does not provide dedicated deliberation or voting functions.

03 / PRACTICAL GUIDE

Where the data goes

Here, “local” means the CourtOS server in Germany.

Three separate routes

01 Your PDFs and Gemma 4: storage and model processing on the Switchboard server at Hetzner in Germany. Not on your computer.

02 OpenCaseLaw: the search terms you expressly submit go to the public search service, which uses external AI. Your library and Word document are not sent with them.

03 Claude Opus 5.5: the frontier review sends your approved text to Anthropic, after a full preview and your confirmation.

The connection

Cloudflare handles access and web traffic, including displayed content. Green indicates Gemma and violet indicates the external review. The labels name the provider and explain where the data goes.

The present pilot

Use public decisions, non-confidential literature you are entitled to use, or fictional test documents. No real case files or confidential material. Signing in is not institutional approval. There is no automatic anonymisation.

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04 / PRACTICAL GUIDE

Find a source. Continue your work.

The reference should follow you to where you write.

Open

In the browser: https://sandbox.swisslaw.io/research. Sign in with your email address and the code you receive. In Word, open the installed CourtOS add-in. Choose sources before asking a question.

Search public sources

Choose “Find case law”, then OpenCaseLaw. Enter a decision reference or a few search terms. Results are limited; no result does not establish that no relevant decision exists. Keep confidential names and facts out of this field.

Take a passage with you

Open the decision and check the original. Select a short passage, confirm the selection, then copy text and source or insert them into Word. The text-search link attempts to find the passage in the original. It does not certify an official paragraph number; a link to the whole document is not a pinpoint reference.

Use a larger window

Open the browser from Word and continue under the same account. Then return the research state to Word. If the two states differ, choose which to keep. A handoff lasts two hours; it starts no new search and makes no automatic change to your document.

Check citation details

Under “Citations”, select PDF versions and choose “Check references”. Citecheck compares recognised decision numbers, dates and numbered sections with the stored OpenCaseLaw list. A finding opens the passage in your submission; matching index entries link to the whole decision. “Not found” means only: absent from this list. Check wording and legal support in the original.

05 / PRACTICAL GUIDE

Add your own sources

Choose original sources. Ask questions. Check the cited passages.

File by case number

Create a library folder bearing the case number. Below it, organise the parties, their submissions and exhibits; keep shared records separate. Upload PDFs to the right folder. CourtOS stores copies on the server.

Choose sources

Use “Choose your sources” to select PDFs from the case and your own literature for the conversation. You can add short, explicitly selected OpenCaseLaw excerpts. Both source groups are then available together. Searching your own documents uses no AI.

Ask and follow up

Ask which amounts a submission mentions or how two accounts of the facts differ. Gemma works with the selected sources. Follow-up questions use the same versions; start a new conversation for other sources. No request can start without sources.

Check the answer

Every answer paragraph needs a checked source reference. Open the passage and read the context. If a reference cannot be verified, the answer is withheld. Links to your PDFs remain restricted to authorised accounts.

Matching words do not prove a conclusion

The check confirms the passage and quotation, not the inference. A party’s allegation remains an allegation. The PDF page may differ from the printed page number.

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06 / PRACTICAL GUIDE

Review submissions

Bring allegations and evidence together in a list you can check.

Prepare

Open “Review submissions”. Add short fictional claims, responses and exhibits through the library. Choose versions, document roles, parties and the report language. “Example matters” offers four exercises in German, French, Italian and English. “Import four PDFs” files the chosen matter under a fictitious case number, in folders for each party and shared exhibit summaries. The documents are reconstructed from published judgments, not original submissions. Then check the roles and parties.

Three tasks

01 Facts and evidence: the party’s allegation, selected exhibit and opposing position appear side by side. “Supports” or “Contradicts” requires a source selected as an exhibit. Another party’s allegation is no substitute for an exhibit; the substantive assessment remains an AI proposal.

02 Legal arguments: comparison is limited to the selected sources. Missing decisions and literature are not retrieved automatically. Research public references separately.

03 Chronology: unambiguous day dates are sorted. Approximate or missing dates remain separate. Conflicting accounts keep separate entries.

Read the result

Choose “Start partial analysis”. A report has at most twelve rows and identifies the sources, versions and pages read. Open the references. Literal matching confirms a passage, not the AI assessment or the truth of a party’s allegation.

A partial analysis under test

AI can miss assertions even when given the full text. Oversized selections are refused; drafts with unconfirmed source passages are withheld. Check omissions and reasons yourself: this workflow’s reliability is still being tested.

07 / PRACTICAL GUIDE

Use AI for a defined task

Choose the task and only the sources it needs.

Gemma on the CourtOS server

In the browser: the assistant can prepare a draft using selected PDFs. Sending starts the analysis. The model uses an Unsloth version and runs on server CPUs; you may have to wait. Gemma does not guarantee correct answers. Usage limits appear in the application.

An external review

In the browser: send a short passage that is permitted to leave CourtOS to the frontier review. Edit the task and text. Check the full preview, provider and model. Attachments and the rest of the chat are not included automatically. The contents of links are not retrieved.

Use the response

An external response can return as an editable draft. It is not sent again automatically. Check each decisive assertion against the original. A convincing answer from a second model is not an independent source check.

08 / PRACTICAL GUIDE

Retrace your work

Conversations are available. A complete working history is planned.

Why history matters

CourtOS saves personal conversations and source references so you can reopen them. A useful history should also show what you accepted, rejected or changed, and why an issue remains open. This additional working record has not yet been implemented.

Keep three layers separate

01 Conversation: question, answer, exact source versions, model and processing location.

02 Saved working finding: results deliberately retained, with attribution, review status, references, counterarguments and open questions. Your working assumption is not a judicial finding; disputed allegations remain identifiable.

03 Your reasons: the reasons you have checked and their changes, with the previous version, date and author. An AI suggestion enters this working record only through your deliberate revision.

Protect personal deliberation

Personal reflections and deliberation notes should not be shared by default. The history records steps and reasoned choices; it does not promise access to a model’s hidden thoughts. An AI answer is not evidence.

Further development

Plans also include court-directed decision drafts, examination of fundamental questions, and hypothetical variations and their consequences. Assumptions would have to remain distinct from findings in the case record. These functions are not yet available.

A memory for the matter

The proposal is a private working record tied to sources, not a second case file of unchecked assertions.

Connect people and terms

A private register would connect real names, documented aliases, roles and approved replacement terms. It would cover people, organisations, places and properties. Identity and role remain separate: one person may hold several roles. Each association needs its source; uncertain identities are not merged automatically.

Two readable versions

Internal Markdown files would preserve the working record with real names and precise references. Only explicitly selected entries would produce a reviewed pseudonymised version for external AI. Documents and notes would use the same terms from the private register. They would not be two independently maintained truths. The mapping to real names stays private.

Make changes visible

A changed source or mapping would flag affected entries for review and revoke approval of affected exports. Earlier conclusions would not be silently replaced. Each derivative would retain a private link to the original version and passage. Altered wording must remain identifiable as derivative text.

Approve each external use

A folder name does not authorise sending. The question, selected notes and history must appear in the exact preview. Moving to external AI starts a new conversation, without automatically copying private names or earlier local history. Replacement names alone do not guarantee anonymity. This memory and export workflow have not yet been implemented.

Test first.
Then decide.

A useful pilot produces observations, not promises.

Assess the benefit

Use a small test case with known allegations, evidence and contradictions. Count omitted and invented assertions. Check parties, amounts, dates and references. Include waiting and correction time. Compare with your usual method.

Before real case files

The institution must settle permitted tasks, provider access, permissions, retention, deletion, operations and professional responsibility. Word for macOS has been tried with a fictional document; other versions and institutional environments need their own tests.

What remains to be built

Direct work in a local case folder and consistent pseudonymisation across documents are future tasks. Replacement names alone do not make documents anonymous. A successful pilot replaces neither this development nor legal and technical approval.

Open software

CourtOS · Source code and GNU AGPL v3.0

Sources and scope

Basis for the attributed positions and legal statements; checked on 9 October 2026.

1. Richard Susskind · Online Courts and the Future of Justice

Publisher’s abstract and contents, Part II. The full book was not reviewed.

2. Richard Susskind · Corrected oral evidence: Constitutional implications of Covid-19

Official House of Lords transcript, 3 June 2020, Question 30; context: Questions 23–24 and 29.

3. James Allsop · Technology and the Future of the Courts

Lecture of 26 March 2019, pp. 2–4 and 11–12, published by the Federal Court of Australia.

4. Swiss Federal Constitution · SR 101 (German text)

Articles 29(1)–(2), 29a, 30(1) and (3), and 191c. Version reviewed: 3 March 2024. English explanations here are summaries, not an official translation.

5. Swiss Federal Supreme Court · BGE 129 I 232

Consideration 3.2, pp. 236–237. Only the general principle on reasons is used; the case concerned naturalisation.

About this edition

Workflows and design principles are our proposals. They establish neither a productivity gain nor the lawfulness of a particular use of AI. Feature status: 10 October 2026. Source checking, model quality and institutional approval remain separate tasks.